

RFI
36C24826R0090

Construct a New Boiler Building and Controls & Expand/Move the Graphic Control

- 1) Attachments 9, 10 and 11 are not properly formatted to allow for take-offs to be done. Please provide properly formatted drawings.

VA Response: All attachments provided are in PDF format; we checked them and do not have any issues.

- 2) There are attachments that include Addenda #1 and Addenda #2. Please confirm these are the architect's addenda.

VA Response: All Addenda provided (1 & 2) are from the Project A&E.

- 3) Please provide consolidated Plans and Specifications to be one complete set of Contract Documents.

VA Response: The project's Documents are a combination of several documents, like Drawings, Addenda, Narrative, SOW, DERM, Specs, etc., and it does not make any sense to consolidate all of them to create 1 huge file that will not be able to be distributed due to its capacity.

- 4) **Temporary Boiler Capacity / Basis of Design Conflict:** The solicitation price schedule and Project Overview describe the temporary boiler plant as two (2) 400 HP rental dual-fuel mobile boilers. However, Drawing M-004 appears to identify a substantially larger basis of design, approximately 850 HP / 27,600 lb/hr per boiler, and Offeror's understanding is that related piping and electrical design may have been developed around that larger temporary-boiler capacity. Please confirm the required temporary boiler capacity, including required steam output, turndown, electrical loads, fuel requirements, and all associated design criteria for bidding purposes. If 400 HP is correct, please confirm that all temporary-boiler piping, utility connections, controls, and electrical infrastructure shown in the Contract Documents are fully compatible with that requirement.

VA Response: The Required Temporary Boiler Capacity is **two 400 HP, Portable, self-contained, dual-fuel.** Reference to the SOW and revised Temporary Steam Calculations and Specs.

- 5) **Temporary Boiler Plant Maintenance, Testing, Certification, Repairs, Spare Parts, and Consumables:** Solicitation page 10 of 64, paragraph 6, states that the Contractor shall be responsible for all maintenance, testing, certification, and repairs of the Temporary Boiler Plant. Offeror understands this requirement to mean the following and requests confirmation of the Government's intent for bidding purposes:

- a. The Contractor shall be responsible for entering into and maintaining a preventive maintenance agreement with the temporary boiler supplier for the duration of the project, at the Contractor's recurring monthly expense.

VA Response: Government Legal Contract will be with the Prime Contractor (PC). It is the PC's responsibility to comply with the requirements; how the PC does that is on them.

- b. The Contractor shall be responsible for all temporary boiler repair costs, including labor, materials, parts, supplier/OEM service support, and any warranty or service package reasonably required to cover repairs during the project duration, at the Contractor's expense.

VA Response: Government Legal Contract will be with the Prime Contractor (PC). It is the PC's responsibility to comply with the requirements; how the PC does that is on them.

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- c. The Contractor shall maintain an on-hand stock of spare parts necessary to make repairs to the Temporary Boiler Plant, and the Government recognizes that such spare parts inventory must be procured in advance and carried by the Contractor as part of its bid.

VA Response: The PC shall be responsible for complying with the SOW requirements and providing the required level of reliability for the Temp Boilers. How does he do it will be on them.

- d. The Contractor shall furnish all chemicals, salt, and other treatment consumables required for operation of the Temporary Boiler Plant for the duration of the project.

VA Response: Reference to the above response.

- 6) **Temporary Boiler Plant Chemicals and Water-Treatment Consumables:** Please confirm that the Contractor's scope includes furnishing all chemicals, treatment supplies, salt, and related consumables necessary for operation and maintenance of the temporary boiler plant for the full duration of the project. If so, please identify any minimum treatment standards, reporting requirements, or owner-furnished items, if any.

VA Response: Reference to the requirements on the SOW. There is no such thing as a minimum requirement. Temp Boilers shall be properly maintained as per the Boiler Manufacturer Specs to avoid Steam Production Interruptions. Check with the Boiler Rental Company.

- 7) **Temporary Boiler Duration / Rental Exposure:** The solicitation states the temporary boiler rental shall be provided on a monthly basis until the project is completed and accepted by the Government, and the contract duration is 1,095 calendar days. Please confirm the Government's estimated duration for the temporary boiler rental period for bidding purposes, including whether offerors are expected to carry the temporary boiler plant from initial mobilization through final completion/acceptance, except to the extent expressly shown otherwise in the Contract Documents.

VA Response: Temp Boilers shall be provided to support the steam load during construction. The estimated maximum construction time, including commissioning, is 3 years. Temp boilers shall be up and running until commissioning. Once commissioning is completed, they can be decommissioned and removed. Temp Boilers rental is on a monthly basis. Reference to the SOW.

- 8) **Progress Payments for Boiler Equipment During Engineering, Procurement, and Fabrication:** The solicitation includes VAAR 852.232-71, Payments Under Fixed-Price Construction Contracts, and the project requires major boiler equipment procurement as part of the overall construction scope.

Major boiler manufacturers commonly require substantial payments prior to shipment, including deposits and milestone payments associated with engineering, submittals, release for manufacture, procurement of major components, fabrication progress, testing, and readiness for shipment. These commercially required payments often occur before the equipment is delivered to the site and, in some cases, before the equipment would be considered a completed or purchased off-site item.

Please confirm the Government's intent for bidding purposes as follows:

- a. The Government will allow progress payment for properly identified, fabricated, and purchased boiler equipment stored off-site in a bonded warehouse or manufacturer's facility, to the extent otherwise allowable under the Contract.

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VA Response: Yes, under VAAR 852.232-71 and consistent with standard VA practice, the Government will allow progress payments for boiler equipment that has been properly identified, fabricated, and purchased, and is securely stored off-site, in either a bonded warehouse or the manufacturer's facility, provided all contract requirements for off-site stored materials are met. These requirements typically include evidence of title and insurance, detailed inventory and documentation, and VA access for inspection. Payment is subject to the terms and conditions of the contract and any additional stipulations stated in the solicitation.

- b. The Government will not allow progress payment for manufacturer-required deposits, engineering, submittals, release-for-manufacture payments, fabrication milestones, or other pre-shipment milestone payments that do not yet constitute a completed or purchased item eligible for payment under the Contract.

VA Response: The Contractor is responsible for carrying the financial risk for any manufacturer-required pre-shipment milestone payments, including deposits, engineering, and other early-stage costs, until the equipment meets all eligibility requirements for progress payment under the contract (i.e., is a completed or purchased item stored in accordance with contract stipulations).

- c. If paragraph b is correct, please confirm the Government expects the Contractor to carry all financing risk associated with such manufacturer-required pre-shipment milestone payments until the equipment becomes eligible for payment as a completed or purchased item.

VA Response: Not applicable, as there is no intent to deviate from paragraph b. Pre-delivery boiler fabrication progress payments for manufacturer-required milestone events (that do not constitute a completed or purchased item) are not eligible for inclusion in the Schedule of Values for progress payments prior to shipment. Only those items that fully comply with contract provisions for off-site stored material/equipment are eligible.

- d. If the Government's intent differs from paragraph b, please identify what specific categories of pre-delivery boiler fabrication progress, if any, may be included in the Schedule of Values and submitted for payment prior to shipment.

VA Response: Not applicable, as there is no intent to deviate from paragraph b. Pre-delivery boiler fabrication progress payments for manufacturer-required milestone events (that do not constitute a completed or purchased item) are not eligible for inclusion in the Schedule of Values for progress payments prior to shipment. Only those items that fully comply with contract provisions for off-site stored material/equipment are eligible.

Please provide a direct response to each item above so offerors can price the project on a consistent basis.

Summary: Offerors should structure their pricing and cash flow assumptions accordingly: Only completed or purchased boiler equipment, properly documented and stored off-site per contract terms, will be considered eligible for progress payments prior to shipment and delivery to the project site. The Contractor is responsible for managing financing for any earlier payments required by the manufacturer.

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- 9) **Superintendent / Quality Control Manager Staffing Expectations:** Please confirm whether the Government will permit the same individual to serve as both Project Superintendent and Quality Control Manager for this project, provided all qualification requirements are met, or whether the Government requires separate full-time individuals for each role. Please also confirm the minimum required full-time site management staff the Government expects throughout construction, including Superintendent, Quality Control Manager, SSHO, and any additional QC support personnel.

VA Response: The Government requires individual personnel for each Construction Activity, especially on this Large, Complex Project. Double Hats are not acceptable.

- 10) **QC Support Staff Source:** Specification Section 01 45 00, paragraph 3.4.C, appears to require QC support staff reporting to the Quality Control Manager. Please confirm whether such QC support personnel must be direct employees of the Prime Contractor or whether qualified subcontractor personnel may satisfy this requirement.

VA Response: How the PC assigns the required Construction Responsibilities, and to whom, is on them. The Government requires PC to provide an assigned responsible individual to cover for each Construction Role.

- 11) **Temporary Perimeter Security / ARX Requirement:** The Contract Documents appear to require ARX temporary perimeter-security fencing. Please confirm whether the Government requires the use of ARX by name, or whether approved equal temporary high-security perimeter systems are acceptable, provided they satisfy all applicable physical security, resiliency, and performance requirements shown in the drawings, addenda, and PSRDM. If ARX is mandatory, please confirm the Government recognizes this as a proprietary temporary perimeter-security requirement rather than ordinary temporary construction fencing.

VA Response: It is the PC's responsibility to provide a Security Fence that meets or exceeds the requirements as per the Construction Documents. If a different type of security is proposed, Submittals shall be submitted in advance for review and approval. If approval is not granted because the product does not meet the requirements, it is the PC's responsibility to procure and install the product called for in the Construction Documents. The Government is not responsible for any additional costs or project delays resulting from an alternate product disapproval submittal.

- 12) **Conduit Material Requirement:** Please confirm whether all conduit associated with the project, including low-voltage systems, shall be rigid metal conduit where indicated by the Contract Documents, and please identify any exceptions intended by design.

VA Response: There is No Exception. Reference to the Approved Construction Documents. PC shall only use and install materials and products approved on the submittals, meeting the specs and Buy American Act.

- 13) **Opacity Monitor Requirements:** Please confirm whether opacity monitors are required for the temporary boilers. Separately, please confirm whether opacity monitors are required for the permanent boilers. If required for either system, please identify the applicable specification section, regulatory basis, and required scope of monitoring, reporting, and integration.

VA Response: Reference to the approved Construction Documents. If Opacity Monitors are required to be installed (Called) either on the Temp Boilers or the Permanent ones or on both, they Shall Be Installed. If they are not called, do not install them.

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- 14) **Concrete Pour Time Restrictions:** Please confirm whether, per Drawing G201 note 4, all concrete pours are required to occur after hours and/or on weekends. If this restriction applies only to certain locations, phases, or activities, please identify those limitations for bidding purposes.

VA Response: All Construction Activities that will impact the Loading Dock or any Utility Shutdown shall be properly coordinated with the Project COR in advance (2 weeks), to determine the best time and date to minimize their impact to Patient Care. Reference to Project SOW.

- 15) **AISC Certification Requirement:** Please confirm whether the structural steel fabricator and steel erector are each required to hold AISC certification for this project, and if so, please identify the required certification categories.

VA Response: All Required Welding Activities (Structural, Mechanical, or Plumbing) require a Certified Welding Contractor with a Valid, Active License. Reference to the SOW.

- 16) **Request for Solicitation Revision – Liquidated Damages:** The current liquidated damages amount of \$5,500 per calendar day appears materially disproportionate when considered alongside the project's existing schedule-risk allocation. As drafted, the Contractor already bears substantial schedule-overrun exposure through the ongoing monthly cost of the temporary boiler plant, including rental, maintenance, repairs, consumables, testing/certification, and operational support, in addition to extended field general conditions, supervision, QC, safety staffing, trailers, fencing, barricades, and related site-support costs. The solicitation also requires the temporary boiler rental to remain in place until project completion and Government acceptance, which independently creates a strong economic incentive for timely performance. Accordingly, Offeror respectfully requests that the Government reconsider and reduce the liquidated damages amount to better align with the project's actual risk allocation and market conditions.

VA Response: LD amount is based on the daily impact. Project Period of Performance was extended from originally 2 years to 3 years to allow PC to procure all lead time Big Ticket Items and complete the Project.

- 17) **Temporary Rental Boiler Safety Devices / Interim Safety Measures / No Modification to Commercially Available Units:** Solicitation page 10 of 64, paragraph 5 states that the Government recognizes the listed safety devices may not be available as a standard on temporary rental boilers and requires the Contractor, during submittals, to identify the safety devices included as standard on the proposed temporary rental boilers and then work with the Government to complete a Boiler Safety Device Interim Safety Measure Form for each missing safety device in order to establish interim measures providing the same level of protection. The solicitation further requires the Contractor to conduct semi-annual safety device testing in accordance with the 8th edition of the VA Safety Device Testing Manual and to perform any additional testing resulting from the Interim Safety Measure assessment.

Based on the foregoing, Offeror requests confirmation that the Government's intent is as follows:

- a. The Temporary Boiler Plant may consist of commercially available rental boiler units in their standard manufactured configuration, with the Contractor required to disclose which safety devices are standard on the proposed units during submittals.

VA Response: The PC shall submit for approval the Temp Boiler Configuration. VA will review it for the minimum acceptance safety and make any recommendations. PC shall comply with the minimum acceptance and provide an SOP for those not provided.

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- b. Except for the utility connections, appurtenances, and temporary-boiler installation work expressly required by the Contract Documents, the Contractor shall not be required to redesign, retrofit, or materially modify the commercially available rental boiler units in order to add non-standard VHA boiler plant safety devices that are not furnished as part of the standard rental unit.

VA Response: Reference to the above response (a).

- c. For any safety devices not furnished as a standard feature of the proposed temporary rental boilers, compliance shall be addressed through the Contract-required Boiler Safety Device Interim Safety Measure Form process with the Government, including any agreed interim procedures, operational restrictions, or additional testing identified through that assessment.

VA Response: Reference to the above response (a).

- d. All required VHA Boiler Plant Safety Device testing applicable to the temporary rental boilers shall be implemented consistent with the Government-approved Interim Safety Measures and the safety devices actually furnished on the commercially available rental units.

VA Response: Reference to the above response (a).

Please confirm the above interpretation are correct for bidding purposes.

VA Response: Reference to the above response (a).

- 18) **PCI Certification Requirement:** Please confirm whether the precast fabricator and steel erector are each required to hold PCI certification for this project, and if so, please identify the required certification categories.

VA Response: As per the A&E response (RDC & Peroni), yes, the precast fabricator and precast erector are both required to hold PCI certification for this project. The required certification category requirement shall be A1. Refer to Book Specification Section 03 45 00, Paragraph 1.3, as well as the structural general notes (Structural Precast Section, item 28E), for applicable requirements.

- 19) **RES-2 Floor Finish:** Per Finish Schedule AF601, the RES-1 flooring system is identified as Stonhard.

Please confirm whether Stonhard is a strict requirement for RES-1, or if equivalent manufacturers and systems will be considered acceptable, provided they meet the specified performance requirements, including but not limited to durability, chemical resistance, slip resistance, and overall system thickness.

Given that Stonhard is a premium manufacturer, confirmation of acceptable equals is requested to ensure competitive procurement and cost efficiency.

VA Response: Contractor shall procure and install all materials as per the approved Construction Documents. Products Submittals shall be submitted in advance for approval. If a product submitted does not meet the requirements as per the specs and or conflicts with another product and is disapproved, PC is responsible for providing the correct one. Government shall not be responsible for any extra material or labor cost resulting from any disapproved submittal not meeting design requirements and or specs.

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- 20) **Wall Finishes – EP-1 & EP-2:** AF601 indicates EP-1 and EP-2 for wall finishes throughout the facility. Please confirm that all wall surfaces are intended to receive finishes in accordance with Section 09 96 59 (Epoxy Coatings), and that epoxy paint is required at all wall locations.

This requirement is not typical for similar boiler plant facilities we have constructed and represents a significant cost impact. Please confirm if this is the design intent or if alternate wall finish systems may be considered in certain areas.

VA Response: Follow Approved Construction Documents.

- 21) **Piping Paint:** Please confirm that all piping painting falls under Section 09 90 00 (Painting and Coating) and is not intended to receive epoxy coating systems unless specifically noted otherwise.

VA Response: Follow Approved Construction Documents.

- 22) **Fly Ash Disposal:** Please confirm whether fly ash is present within the existing boilers that will require removal and disposal as part of this project scope. If so, for the purposes of bidding, please provide a quantity to be included in the bid for proper handling and disposal.

VA Response: The existing boilers are not solid fuel boilers, and fly ash would not normally be present and is not expected to be present.

- 23) **Lead Paint / Hazardous Materials:** Specification Section 02 83 33.13 is included in the contract documents; however, no hazardous materials drawings have been provided.

Please confirm that the intent is for the Contractor only to include for the proper removal and disposal of any lead-containing materials identified, as required to safely perform cutting, demolition, and disposal of affected items identified.

Please confirm whether a Certified Industrial Hygienist (CIH) is required to be present on-site at all times during lead abatement activities, or if periodic oversight/air monitoring is acceptable.

VA Response: Follow Approved Construction Documents.

- 24) **Section 04 20 00 – Delegated Design:** Section 04 20 00 includes delegated design requirements. Please provide the applicable design criteria (including loads, performance requirements, and any governing codes/standards) to be used for delegated design.

If no delegated design is intended, please confirm that these requirements may be waived.

VA Response: As per the A&E response (RDC & Pennoni), no delegated design in masonry is intended. It's confirmed that these requirements are waived.

- 25) **Conformed Set of Documents:** Please confirm/provide a conformed set of Contract Documents.

VA Response: All required construction documents were provided.

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- 26) **Loading Dock Operations During Crane Activities:** Based on current understanding, the loading dock may be closed from 6:00 PM to 6:00 AM to accommodate the erection of precast panel, please confirm whether weekend periods are subject to the same operating restrictions or if extended or unrestricted access to the loading dock is available on weekends. This clarification is necessary, as loading dock availability directly impacts the sequencing and duration of precast panel installation activities.

VA Response: Reference to SOW Chapter X Work Hours.

- 27) **Night Work / Staffing Requirements:** Please confirm whether all on-site personnel are required to be present during designated night work activities, or if only those personnel directly associated with the after-hours work are required to be on-site.

We note that other trades and activities may be occurring that are not required to be performed during night work hours. Please clarify if those personnel are permitted to work standard hours independent of the night work operations.

Additionally, it is understood that requiring full coverage of supervision and safety roles across multiple shifts may be unreasonable and/or present safety and fatigue concerns, particularly for extended night work durations. Please confirm whether the Superintendent, Quality Control Manager, and SSHO roles may be performed by a single qualified individual during these periods, or alternatively, whether staggered coverage or reduced staffing requirements are acceptable while maintaining compliance with contract and safety requirements.

VA Response: Safety is not unreasonable and is required at all times.